

Gopal Krishna v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 29 May 2018 · Writ-C No. 19759 of 2018 · Writ-C No. 19759 of 2018 · **Writ allowed; citation in deceased consumer's name quashed; mutate under 4.44 then seek 6.14 installments.**

HEADNOTE

A recovery citation issued in the name of a deceased recorded consumer cannot be sustained. The heir must apply for mutation under Clause 4.44 of the U.P. Electricity Supply Code, 2005, and may thereafter seek installment payment of dues under Clause 6.14; the licensee is to pass an appropriate order thereon.

FACTUAL SUMMARY

Gopal Krishna, son of late Mohan Lal Rai, challenged a recovery citation dated 4 May 2018 issued in his deceased father's name in respect of a domestic electricity connection. The father had died about fifteen years earlier. The Electricity Department did not dispute that the recorded consumer was dead. The petitioner stated he was prepared to pay the dues in easy installments and sought quashing of the citation.

REUSABLE CONSTRUCTIONS

1. A recovery citation issued in the name of a deceased recorded consumer cannot be sustained. ¶ 4-5
2. An heir of a deceased consumer must apply for mutation under Clause 4.44 and may thereafter seek installment payment of dues under Clause 6.14; the licensee is to pass an appropriate order on that application. ¶ 6

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.44

mutation of heir after recovery in deceased consumer's name

HOLDING

A recovery citation issued in the name of a deceased recorded consumer cannot be sustained. The heir shall apply under Clause 4.44 of the U.P. Electricity Supply Code, 2005 for correction and mutation of his name on the connection. ¶ 4-6

HOLDING-UNIT · UP-2005::6.14

installment facility after mutation

HOLDING

After mutation under Clause 4.44, the heir may apply for payment of dues in installments under Clause 6.14. The licensee shall pass an appropriate order thereon within six weeks of presentation of a certified copy of the order. ¶ 6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — QUANTUM OF DUES AND WHETHER INSTALLMENTS UNDER CLAUSE 6.14 SHOULD BE GRANTED

Left to the third respondent to pass an appropriate order on the installment application after mutation. ¶ 6

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Gopal Swarup Chaturvedi v. U.P. State Electricity Board, Lucknow</i> 1999 AWC (4) 3349			4	Referred

